# Pacific Crest Imports LLC
# STANDARD TERMS AND CONDITIONS OF SALE

Customer: Keystone Marine Supply Co.  Account opened: 2023-08-07  Rev. 4

**1. ACCEPTANCE.**
These terms govern every sale by Seller to Customer. Any additional or different terms in Customer's purchase order are rejected unless expressly accepted in writing by Seller's credit department.

**2. PRICES.**
Prices are those in effect on the date of shipment unless a written quotation states otherwise. Quotations expire thirty (30) days from issue. Seller may correct clerical errors in any quotation or invoice.

**3. PAYMENT.**
Net 30 days from invoice. Past-due balances bear a finance charge of 1.5% per month. Seller may suspend shipments while any balance is past due.

**4. SHIPMENT.**
(a) Shipments are FOB Seller's warehouse, Tacoma, Washington. (b) Risk of loss passes to Customer on tender to the carrier. (c) Delivery dates are estimates and Seller is not liable for delay.

**5. RETURNS.**
No returns without a return authorization number. Restocking charge 15%. Special-order items are not returnable.

**6. WARRANTY.**
Seller passes through the manufacturer's warranty and makes no other warranty, express or implied, including merchantability or fitness for a particular purpose.

**7. TAXES AND DUTIES.**
(a) Customer shall bear all sales, use, excise, value-added and similar taxes arising from the sale, other than taxes on Seller's net income. (b) Customs duties and tariffs assessed on imported goods are stated separately on Customer's invoice at Seller's actual cost and are payable with the invoice. (c) Should Seller later receive from any governmental authority a rebate, drawback or return of duties that were so stated on Customer's invoices, Seller shall remit the amount so received, less the direct costs of obtaining it, to Customer within forty-five (45) days of receipt, with a statement identifying the invoices concerned. (d) Customer shall provide resale or exemption certificates on request.

**8. LIMITATION.**
Seller's liability for any claim shall not exceed the price of the goods giving rise to the claim. In no event is Seller liable for consequential or incidental damages.

**9. GOVERNING LAW.**
Washington law governs. Venue lies exclusively in Pierce County, Washington.

**10. ENTIRE AGREEMENT.**
These terms, the quotation and the invoice are the complete agreement.